



File No.: RR/00062/2023

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by DIARIO ABC, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 27, 2022, and based on the following

FACTS

FIRST: On December 27, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file PS/00193/2022, by virtue of which a fine of 50,000.00 euros (fifty thousand euros) was imposed on DIARIO ABC, S.L., with NIF B82824194, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

Furthermore, the resolution confirmed the following provisional measures imposed on DIARIO ABC, S.L.:

- Removal or distortion of the victim's voice from its web addresses, preventing, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- Removal or modification of the content in such a way that it prevents access and disposal of the original by third parties, but guarantees its preservation, for the purpose of safeguarding evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

This resolution, which was notified to the appellant on the date, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00193/2022, the following was recorded:

First: On April 8, 2021, Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection (hereinafter, AEPD) reporting that several media outlets published on their websites the audio of the statement made before the judge by a victim of a multiple rape, to illustrate the news related to the trial in a case that was highly publicized, providing links to the news published on the websites of the complained media.

On May 10, 2021, a new document was received from the claimant stating that they had been able to verify that some media had removed that information, although they attached publications made by some media on Twitter where it was still available.

Second: The General Subdirectorate for Data Inspection, in the exercise of its investigative activities, found a publication by the appellant where the victim's voice could be heard without distortion at the following address:

- ***URL.1

Third: In the context of the preliminary investigative proceedings, on May 17, 2021, a precautionary measure of urgent removal of content or distortion of the voice of the intervenor was notified to the appellant so that it would be unidentifiable at the web addresses from which this content was accessible, specifically from:

- ***URL.1

Fourth: On May 18, 2021, a document was received at the AEPD from the appellant informing that:

- The video subject to the request "has been provided by Agencia Atlas, within the framework of an agreement for the supply of informative content prepared by Agencia Atlas itself, which includes both text and audiovisual material, and over which Diario ABC does not hold transformation rights."
- That as soon as they became aware of the AEPD's request, they proceeded to the immediate removal of the video both on the website indicated in the request and on the replica made on the

website of the Sevilla edition of Diario ABC (**URL.2). They also requested Google to de-index the URL where the video appeared.

- That they have informed Agencia Atlas of the AEPD's request so that it may act accordingly.
- That they retain a copy of such content "for the purpose of safeguarding evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed."

- That they have forwarded the AEPD's request to Vocento (the media group to which ABC belongs).

Fifth: It is proven in the report of preliminary investigative actions dated January 24, 2022, that the statements made by the appellant in their document of May 18, 2021, were verified, that is, it was confirmed that the news was no longer available at this address:

- **URL.1

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Sixth: It is recorded in the file the action of the instructor of the procedure dated June 2, 2022, by which the legal notice on the website **URL.1 is reproduced, whereby the holder of the same is DIARIO ABC, S.L., with CIF B-82824194, this entity being responsible for all content published under that domain.

Seventh: The appellant, in response to the evidence requested, stated, regarding the request for a report on the technical or organizational security measures implemented to ensure that only personal data necessary for each of the specific purposes of the processing are subject to treatment, that in this case "the measures to be implemented are those determined by the judicial body that has recorded the content and has proceeded to disseminate it to the media, as it cannot be assumed that ABC may have better criteria than those who have known the facts firsthand, have judged them, and have considered their dissemination legitimate, (...).

In addition to the measures adopted initially by the Provincial Court of **LOCALIDAD.1, there is a second filter, which is carried out by ATLAS when preparing the content it distributes through its service to verify that the news is published respecting all legal guarantees, (...).

Eighth: It is recorded in the file a document dated June 24, 2022, from the Sole Administrator of the company Comunica Mediatrader, S.L.U. (owner of the Atlas Agency) in which it states:

"That the image transfer contract (to ABC) dates from April 16, 2007. This contract was formalized with Vocento Mediatrader (VMT), a company that at that time was 100% owned by Vocento capital.

The contract states the following:

Atlas agrees to provide ABC (as stated in Annex II of the aforementioned contract) the basic modality of the e-news service consisting of the supply of 900 video news items monthly, 80% of Atlas's own production and 20% Reuters production, at a rate of 30 video news items daily on average to be selected from the entire available offer.

Procedure. Through the Atlas or Mediaset website. Where Atlas places the content at ABC's disposal for it to select those of interest (point 2).

Ownership of images and information. Atlas will respond and hold ABC harmless against any claim, lawsuit, or similar regarding intellectual property (point 6).

Legality and responsibility for the content. Atlas is responsible for the updating of the service and guarantee."

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Ninth: It is recorded in the file a copy of the General Conditions of the Atlas Agency, which indicate in their section 4, related to responsibility for the use of content on the internet, the following:

"MEDIASET ESPAÑA does not guarantee the quality, accuracy, reliability, correctness, or morality of the data, programs, information, or opinions, regardless of their origin, that may circulate through its network or through the networks that the Client may access via the portal www.atlas-news.com. The Client expressly agrees to exempt MEDIASET ESPAÑA from any claim arising from what is mentioned in this section. The Client assumes under its exclusive responsibility the consequences, damages, or actions that may arise from accessing such content, as well as from its unauthorized reproduction or dissemination not expressly and documentarily authorized by MEDIASET ESPAÑA. This limited guarantee and the limitation of liability mentioned in the previous paragraphs shall not affect or harm the imperative rights that may assist the Client according to their place of residence."

Tenth: It is recorded in the file a copy of the General Conditions of the Internet Service of the Atlas Agency.

The General Conditions of the Internet Service of the Atlas Agency indicate regarding distribution the following:

"The contents are published within the distribution channel www.atlas-news.com. In the professional access section, functions are enabled that allow clients to quickly and easily download video, photo, and text files for publication on their pages.

For subscribers to the entire production, it is possible to automate the publication process, so that the news is automatically published on their website."

THIRD: The appellant submitted on February 3, 2023, to this AEPD, a request for reconsideration, basing it fundamentally on the following points:

- Violation of the fundamental right to freedom of information (Article 20.1.d) of the CE), which causes the resolution to incur in a cause of absolute nullity under Article 47.1.a) of the LPACAP.

The appellant states that it has the right to inform about the news since "It is a reiterated doctrine by the jurisprudence that information about criminal cases is of general interest and has public relevance. Interest and relevance that are accentuated in cases of physical and psychological abuse as, unfortunately, is the crime of multiple rape to which the victim was subjected. ABC, in its capacity as a means of communication, not only has an informative role in disseminating information that is of general interest and relevant to public opinion, but also guarantees the Fundamental Right to Freedom of Information derived from Article 20 of the Spanish Constitution."

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Therefore, in this case, and contrary to the opinion of the AEPD, it is a matter of weighing two conflicting Fundamental Rights, namely the Right to Freedom of Information and the Right to the Protection of Personal Data.

The appellant considers that the issue should focus on whether it could have carried out a "data minimization" in accordance with Article 5.1.c) of the GDPR without altering the informational purpose that the dissemination of the news pursued, which it understands was "impossible since ABC did not have the rights to transform the recording and the news belonged to a news agency; ABC could neither manipulate the audio nor alter the rest of the content of the news," adding subsequently that, moreover, "the news in question was published automatically."

For this reason, the appellant states that "it could choose between deleting the published news or not, but in no case could it transform the audio since it does not have the right to transformation. Thus, if it could not manipulate that voice, it was hardly possible to carry out a 'minimization' of the data processed, since the audio could neither be manipulated nor distorted. The news had to be maintained as the news agency had provided the recording to ABC, so demanding responsibility in this case based on the principle of data minimization infringes upon the freedom of information that ABC holds, as the news could not be transformed and it undoubtedly has public relevance." That is, it understands that its conduct "was fully in accordance with the law, as it was materially impossible to 'minimize' the data of the news, in addition to being protected," since the news is of public relevance and the information is truthful.

It points out that national courts have been considering that the principles set out in Article 5 of the GDPR find their limit in the fundamental right to freedom of information, invoking for this purpose the judgment of the Court of Justice of the European Union of June 22, 2021 (No. C-439/19), the judgment of the National Court, Contentious Chamber, of September 21, 2021 (rec. 1986/2019), and Judgment 10747/2020, of the National Court, dated September 9, 2022.

Therefore, it understands that not only is there no infringement of Article 5.1.c) of the GDPR, but that the resolution suffers from full nullity, in accordance with Article 47.1.a) of the LPACAP, since it violates its fundamental right to freedom of information.

It criticizes the AEPD's resolution indicating that it could have opted for the event to be covered by a journalist instead of by a news agency, stating that "ABC cannot be compelled to have the technical and human resources to cover each of the news events that occur daily not only in Spain but around the world. There is no media outlet capable of having such a work infrastructure, which is why it is essential to resort to news agencies so that the public can be effectively informed."

For all the above, the appellant considers that "in the weighing of interests, the right to information of my client regarding news of undeniable public relevance prevails over the right to the protection of data of the affected person, especially if, as has been proven, it is impossible for this party to 'minimize'."

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the data used from the victim, insofar as my client could not manipulate the audio of the victim's testimony."

- The publication of the news does not constitute a violation of data protection regulations, as the victim's image is completely censored, leaving only their voice as data to identify them.

The appealing party states that "Although the voice may be a personal data and its processing is protected by the LOPD, in this specific case it is not only that its processing is justified and protected by the freedom of information, but also that the voice alone was not a means to identify the person, as it was not accompanied by any other relevant data (neither image, nor name, nor address, nor any other type of personal data) that could make the victim identifiable."

They do not agree with the statement in the resolution of the AEPD that "the voice of any person is a personal data and identifies or makes them uniquely identifiable, regardless of the additional data present in the case," because they understand:

- "The confusion regarding the identity of people's voices is a recurring and common error, even with familiar voices that people are accustomed to hearing day after day."

- "For there to be a unique and seamless identification, additional data is required that, in this case, did not accompany the news subject to this procedure."

They consider that "it is unacceptable for the possible identification of the victim to be limited solely, as stated in the resolution being appealed, to the victim's closest circle, especially considering that this is an event of undeniable public relevance and that, therefore, the victim's closest circle is presumed to be fully aware of their status as such."

To add subsequently that "outside of that closest circle, this party considers that the victim's voice, not having been accompanied by other data that could make them identifiable, is not sufficient by itself to identify the person." To this effect, they invoke the ruling of the Constitutional Court No. 57/2004, of April 19.

They also invoke the report 190/2009 of the AEPD to the effect that "the voice is not a personal data per se, but is a data protected by data protection regulations only when it meets the provisions of Article 4.1 of the GDPR, that is, when it constitutes information that makes the person identifiable."

For the reasons stated, they consider that "the object of discussion and analysis should not be the possibility of recognizing the victim within an environment that is presumably already aware of such circumstances, but rather the possibility of recognition beyond that close environment. And for this, as asserted by the AEPD, the combination of the voice with other data is required. In the case at hand, no data other than the victim's voice was made public."

- Disproportionate sanction. They consider that the aggravating factors applied do not concur, as well as that the resolution now being appealed overlooks a series of mitigating circumstances, specifically:
 - The degree of cooperation with the supervisory authority (Article 83.2.f) of the GDPR).
 - They have not been previously sanctioned by the AEPD (Article 83.2.e) of the GDPR).
- Furthermore, the appealing party states that "according to Article 76 of the LOPD, in relation to point k) of Article 83.2 of the GDPR, there are also some circumstances that must be taken into account to modulate the eventual responsibility of ABC, and that the infringement did not have a continuous nature as the news was removed, in addition to the fact that the informative activity carried out by ABC is undoubtedly linked to the processing of personal data."
- The appealing party requests in the Other statement the suspension of the sanction under Article 117.2.b) of the LPACAP, since the challenge to the appeal is based on one of the causes of nullity of full law set forth in Article 47 of the LPACAP, specifically that of letter a), which establishes that acts of Public Administrations are null and void in cases where they violate rights and freedoms that are subject to constitutional protection, a violation that, in this case, the appealing party indicates is the infringement of their Fundamental Right to Freedom of Information, regulated in Article 20.1.d) of the CE.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegation regarding the violation of the Fundamental Right to Freedom of Information
The appealing party considers that the resolution being appealed violates the Fundamental Right to Freedom of Information regulated in Article 20.1.d) of the CE, as it incurs in a cause of nullity of full law under Article 47.1.a) of the LPACAP.

In this regard, the responding party states that they have the right to inform about the news since "It is a repeated doctrine by the jurisprudence that information about criminal cases is of general interest and has public relevance. Interest and relevance that are accentuated in cases of physical and psychological abuse, as, unfortunately, is the case.

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the crime of multiple rape to which the victim was subjected. ABC, in its capacity as a means of communication, not only has an informative role in disseminating information that is of general interest and relevance to public opinion, but is also a guarantor of the Fundamental Right to Freedom of Information derived from Article 20 of the Spanish Constitution.

Therefore, in this case, and contrary to the opinion of the AEPD, it is a matter of weighing two conflicting Fundamental Rights, namely the Right to Freedom of Information and the Right to the Protection of Personal Data.

It is not clear why the appellant believes that the AEPD's resolution is against weighing the aforementioned fundamental rights, since the Legal Basis IX of the resolution states:

"In any case, it must be remembered that the Fundamental Right to Freedom of Information is not, per se, absolute, but is limited by other rights and public freedoms. As was mentioned in Legal Basis VI and will be explained in Legal Basis XIV, it is not a matter of giving precedence to one fundamental right over another, but rather of finding a balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data, in order to achieve the purpose of the former without undermining the latter, requiring that the means of communication carry out, in any case, a weighting, which is not evident."

Meanwhile, Legal Basis XIV of the aforementioned resolution indicates:

"Precisely because the evident public interest in the news is not denied, given the general interest in

criminal cases, in this specific case, it is not a matter of diminishing the Fundamental Right to Freedom of Information by the prevalence of the Fundamental Right to the Protection of Personal Data, but of making them fully compatible so that both are absolutely guaranteed. That is, the freedom of information of the media is not called into question but the weighting with the right to data protection based on the proportionality and necessity of publishing the specific personal data of the voice. Such a situation could have been resolved by using technical procedures to prevent the recognition of the voice, such as, for example, the distortion of the victim's voice or the transcription of the account of the multiple rape, both security measures, applied depending on the case in a standard manner by the means of communication.”

The appellant continues by stating that the issue should focus on whether a “data minimization” could have been carried out in accordance with Article 5.1.c) of the GDPR without altering the informative purpose that the dissemination of the news pursued, which, the appellant understands, “was impossible since ABC did not have the rights to transform the recording and the news belonged to a news agency, ABC could neither manipulate the audio nor alter the rest of the content of the news.”, later adding that, moreover, “the news in question was published automatically.”

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Therefore, the appealing party states that “it could choose to either remove the published news or not, but in no case could it transform the audio since it does not have the right to transformation. Thus, if it could not manipulate that voice, it could hardly have carried out a 'minimization' of the processed data, since the audio could neither be manipulated nor distorted. The news must be maintained as the news agency provided the recording to ABC, so demanding responsibility in this case based on the principle of data minimization infringes upon the freedom of information held by ABC, as the news cannot be transformed and it has undeniable public relevance.” That is, it understands that its conduct “was fully in accordance with the law, as it was materially impossible to 'minimize' the data of the news, in addition to its conduct being protected,” since the news is of public relevance and the information is truthful.

The Legal Basis III of the contested resolution motivated that the responsible party for the processing of personal data that has been subject to sanctioning procedure is the now appealing party, since it holds the means and purposes of the processing of personal data.

Furthermore, the aforementioned legal basis indicates, regarding the fact that the news was published automatically on the digital newspaper of the appealing party, that “(...) it is duly proven that a contract was signed between the responding party and the news agency whereby the supply of content is carried out 'Through the Atlas or Mediaset website. Where Atlas places the content at the disposal of ABC for it to select those that are of interest to it.' This implies that in order to take into account the statements made by the responding party, it is necessary for it to present evidence, by any means admitted in law, that ratifies them, as they are contrary to what was agreed in the supply contract. And since such evidence has not been presented, the allegations made in this regard cannot be taken into account.

Thus, according to the above, Atlas makes a series of news available to ABC, from which the latter selects those it considers relevant, downloads them, and includes them on its website.

In short, the responding party has decision-making power regarding which contents from the Atlas Agency it publishes and which it does not.”

Proven facts regarding which the now appealing party continues to present no contrary evidence.

Since the appealing party is responsible for the processing, it must comply with the principles regulated in Article 5 of the GDPR, among which is the principle of data minimization.

As already indicated in Legal Basis VIII of the contested resolution:

“Article 5.1.c) of the GDPR does not limit the excess of data, but the necessity. That is, personal data shall be 'adequate, relevant, and limited to what is necessary' for the purpose for which they were collected, so that if the pursued objective can...

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to be achieved without excessive data processing, this must be done in any case.

Likewise, Recital 39 of the GDPR states that: “Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.” Therefore, only data that is “adequate, relevant, and not excessive in relation to the purpose for which it is obtained or processed” will be processed.

The legal basis subsequently states that “the victim's statement” is not a personal data according to the definition established in Article 4 of the GDPR. The personal data that is the subject of this sanctioning procedure is the voice of the victim, independent of the content of their statement before the judicial body, a voice that is not necessary to know the content of the narration and, therefore, for the medium to achieve its informative purpose.” (The underlining is ours).

As already pointed out in the aforementioned Legal Basis III of the contested resolution, the appellant “has the power to decide how to obtain the information, since instead of opting for it to be provided by a news agency, they could have chosen for the event to be covered by one of their journalists.

Although this would not change the commission of the infringement.”

The above is criticized by the appellant because “ABC cannot be compelled to have the technical and human resources to cover each of the news events that occur daily not only in Spain but around the world. There is no media outlet capable of having such a work infrastructure, which is why it is essential to resort to news agencies so that the public can be effectively informed.”

But all that the contested resolution compels is to comply with the principle of data minimization regulated in Article 5.1.c) of the GDPR, regardless of the means used.

The appellant states that “national courts have been considering that the principles set out in Article 5 of the GDPR find their limit in the fundamental right to freedom of information,” invoking in this regard the judgment of the Court of Justice of the European Union of June 22, 2021 (No. C-439/19), the judgment of the National Court, Contentious Chamber, of September 21, 2021 (rec. 1986/2019), and Judgment 10747/2020, of the National Court, dated September 9, 2022.

Regarding the judgment of the Court of Justice of the European Union of June 22, 2021 (No. C-439/19), the appellant refers to its recitals 104 and 105:

“104 Indeed, while Article 5(1)(c) of the GDPR makes the processing of personal data subject to the respect of the principle of ‘data minimization’, the wording of this provision clearly indicates that it does not intend to establish such a general and absolute prohibition and that, in particular, it does not prevent the communication to the public of personal data when such communication is necessary for the performance of a task carried out in the public interest or in the exercise of public powers, in the sense of...

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of Article 6, paragraph 1, letter e), of said Regulation.

This is the case even when the data in question falls within the scope of Article 10 of the GDPR, provided that the legislation authorizing such communication establishes adequate safeguards for the rights and freedoms of the data subjects [see, in this regard, the judgment of September 24, 2019, GC and others (Removal of links to sensitive data), C-136/17, EU:C:2019:773, paragraph 73].

105 In this context, it is important to recall that the fundamental rights to respect for private life and to the protection of personal data do not constitute absolute prerogatives, but must be considered according to their function in society and weighed against other fundamental rights. (...) (the emphasis is ours).

Article 8.2 of the LOPDGDD states that “The processing of personal data may only be considered based on the performance of a task carried out in the public interest or in the exercise of public powers conferred on the controller, in the terms provided for in Article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.”

Since the actions of the media do not derive from a competence attributed by a norm with the rank of law, but from the exercise of the Fundamental Right to Freedom of Information regulated in Article 20.1.d) of the Constitution, the processing carried out by the appellant is not legitimized by Article 6.1.e) of the GDPR, and therefore the invoked judgment is not applicable to the present case.

On the other hand, Judgment 10747/2020 of the National Court, dated September 9, 2022, was already invoked by the appellant during the processing of the sanctioning procedure. Regarding it, the Legal Basis IV of the resolution now appealed indicates that “the aforementioned Judgment of the National Court of September 9, 2022 is also not applicable to the present case, in which it was not judged whether there had been a violation of Article 5.1.c) of the GDPR, which is the one under study in the present procedure, but whether there had been a violation of Article 5.1.f) of the GDPR.”

Notwithstanding the above, this does not mean that the resolution now appealed denies that the Fundamental Right to the Protection of Personal Data is not an absolute right, as was indicated earlier. In fact, in the same line as the judgment of the National Court, Contentious Chamber, of September 21, 2021 (rec. 1986/2019), invoked by the appellant, Legal Basis XII of the resolution states that: “In the conflict between the Fundamental Rights to Freedom of Information in relation to the Fundamental Right to the Protection of Personal Data, even when equal degrees of protection are recognized for both constitutional rights, ordinarily the former tends to be given precedence by our courts, after evaluating and weighing all the elements at play.

However, preponderance does not mean prevalence when, considering all the circumstances present in a specific case, the limits set by regulations and jurisprudence are exceeded.”

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Subsequently pointing out in its Legal Basis XIV that “this is not, as in other jurisprudentially examined cases, about giving precedence to one fundamental right over another, having to choose which one weighs more in a specific case. Rather, it is about finding a balance between both to achieve the purpose of the first without distorting the second. The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR.”

In short, the appellant, as the data controller, has committed an infringement of Article 5.1.c) of the GDPR, as it could have opted for means of publishing the news that did not involve the dissemination of the victim's voice without distortion. That is, it could have exercised the Fundamental Right to Freedom of Information without needing to violate the Fundamental Right to the Protection of Personal Data of the victim.

Therefore, the Fundamental Right to Freedom of Information of the appellant has not been violated, so the contested resolution does not suffer from nullity in accordance with Article 47.1.a) of the LPACAP.

III

Response to the allegation regarding the voice as personal data

In relation to the statements made by the appellant regarding the consideration of the voice as personal data, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Bases IV and V of the resolution now being appealed.

The voice of any person is a personal data and identifies or makes them identifiable in a unique way, regardless of any additional data that may exist in the case. Thus, the publication of the personal data of the victim's voice alone and without distortion put them at a certain risk of being identified by individuals who were unaware of their status as a victim.

Among the allegations of the appellant, special attention should be paid, due to its novelty, to the invocation of report 190/2009 of the AEPD regarding, as stated by the appellant, that “the voice is not a

personal data per se.” However, the cited report does not make such a statement at any time. Moreover, report 139/2017 of the Legal Department of this Agency states that “the image, as well as the voice of a person, is a personal data, just as any information that allows determining, directly or indirectly, their identity will be...” a report referred to in Legal Basis X of the resolution now being appealed.

IV

Response to the allegation regarding the consideration of the sanction as disproportionate

In relation to the statements made by the appellant regarding the consideration of the sanction as disproportionate, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Basis IX of the resolution now being appealed.

As indicated in Legal Basis XVII of the contested resolution, “In this case, the following aggravating criteria are deemed concurrent:

- Aggravating factors:

- Article 83.2.a) of the GDPR:

Nature, severity, and duration of the infringement: The nature of the infringement is considered very serious since it entails a loss of disposition and control over the personal data of their voice to a person who has been a victim of a violent crime and against sexual integrity, and by disseminating such personal data, there was a certain risk that they could be recognized by third parties, with the serious damages and harms that this would cause them.

- Article 83.2.b) of the GDPR.

Intentionality or negligence in the infringement: While it is considered that there was no intentionality on the part of the media outlet, it is concluded that it was especially negligent in not ensuring a procedure that guaranteed the protection of personal data in such sensitive circumstances, especially when in many cases the voice is distorted in news reports to prevent the person speaking from being recognized.

- Article 83.2.g) of the GDPR.

Categories of personal data affected by the infringement: The certain possibility of recognizing the victim of a crime as reported in the news, very serious, violent, and against sexual integrity (multiple rape), poses a serious detriment to the affected person, as what happened is linked to their sexual life.”

On the other hand, the contested resolution already indicated that the following cannot be applied to the present case as mitigating circumstances:

- The degree of cooperation with the supervisory authority (Article 83.2.f) of the GDPR) because “The degree of cooperation with the Agency cannot be considered a mitigating factor since the withdrawal orders it issues are mandatory in accordance with the provisions of Article 69 of the LOPDGDD. The consideration of cooperation with the Agency as a mitigating factor, as the appellant intends, is not linked to any of the cases in which there may be collaboration or cooperation or requirement by virtue of a legal mandate, when the actions are due and required by law, as in the case at hand, being indifferent the degree of diligence in responding to the requests.” (Legal Basis IX)

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- Has not been previously sanctioned by the AEPD (Article 83.2.e) of the GDPR) because “In this regard, the Judgment of the National Court, dated May 5, 2021, rec. 1437/2020, provides us with the answer: ‘It considers, on the other hand, that the absence of a prior infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that, among other circumstances, the following must be taken into account for the imposition of the administrative fine: ‘e) any previous infringement committed by the data controller or the data processor.’ This is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its

application as a mitigating factor.” (Legal Basis IX)

The following statement from the appellant is novel: “According to Article 76 of the LOPD, in relation to point k) of Article 83.2 of the GDPR, there are also some circumstances that must be taken into account to modulate the eventual liability of ABC, namely that the infringement did not have a continuous nature as the news was removed, in addition to the fact that the informative activity carried out by ABC is undoubtedly linked to the processing of personal data.”

Article 29.6 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes that “the carrying out of a plurality of actions or omissions that infringe the same or similar administrative provisions, in execution of a preconceived plan or taking advantage of the same opportunity, shall be sanctionable as a continued infringement.”

In the present case, the video was published on April 6, 2021, and it was known to be removed on May 17, 2021, the day on which the AEPD notified the urgent content removal order. That is to say, the video with the victim's voice without distortion was available for just over a month. Thus, we are faced with a single action characterized by its durability over time, as indicated in Legal Basis V of the contested resolution, since while the news was published, it remained online, making it possible to access its content, and therefore the victim's voice without distortion.

In other words, we are dealing with a permanent infringement, as indicated by the Supreme Court ruling of October 23, 2015 (Sec. 3, rec 384/2013): “[P]ermanent infringements are distinguished from continued ones in that in the former, the offender carries out a single punishable action, but this action is characterized by its prolongation in time, so that the consummation of the infringement begins at the moment the offender carries out the typical action, but what could be called the period of consummation does not stop there but persists from that initial period until the offender terminates the typical conduct constitutive of the infringement, so that the consummation of the crime perpetuates until the conduct ends. It has been said, therefore, that in permanent infringements, by the will of the author, the typical action is continuously renewed, thus maintaining the unlawful situation until the offender puts an end to it.”

However, while we are not faced with a continued infringement, it should be noted that, just as the aforementioned circumstance regulated in Article 83.2.e) of the GDPR is considered by the aforementioned Judgment of the National Court,

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of May 5, 2021, solely as an aggravating circumstance (any prior infringement committed by the responsible party or the data processor), also the circumstance regulated in Article 76.2.a) of the LOPDGDD, the continued nature of the infringement, can only be understood in application of such reasoning as an aggravating circumstance. The fact that the prerequisite for its application does not concur means that it cannot be taken into consideration, but it does not imply or allow its application as a mitigating factor.

On the other hand, the resolution has indeed taken into account that the appealing party engages in an activity related to the processing of personal data, which is why it considers that the circumstance regulated in Article 83.2.b) of the GDPR, negligence, applies as an aggravating circumstance, as stated in Legal Basis IX of the resolution now being appealed:

“In this regard, it is necessary to cite the Judgment of the National Court of October 17, 2007 (rec. 63/2006), which indicates, in relation to entities whose activity involves continuous processing of customer data, that: ‘(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.’”

Conclusion

Consequently, in the present appeal for reconsideration, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

VI

Suspension of the execution of the sanction

Regarding the request for suspension of the execution of the imposed sanction until the present appeal for reconsideration is resolved, it is noted that, in accordance with Article 90 of Law 39/2015, on Common Administrative Procedure of Public Administrations, relating to "Specialties of the resolution in sanctioning procedures," its section 3 indicates that the resolution that concludes the procedure will be executable when no ordinary appeal can be made against it in the administrative route. Therefore, the contested Resolution is not executable until the present appeal for reconsideration is resolved, so the requested suspension is neither necessary nor has any effect.

Furthermore, it should be noted that such a request is based on Article 47.1.a) of the LPACAP, which establishes that acts of Public Administrations are null and void in cases where they infringe rights and freedoms that are subject to constitutional protection, an infringement that, in the present case, indicates the party.

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The appellant is violating their Fundamental Right to Freedom of Information, regulated in Article 20.1.d) of the Spanish Constitution (CE).

However, it has already been stated in Legal Basis II of this resolution that there is no infringement of the Fundamental Right to Freedom of Information of the appellant, as it has been duly established that they have violated Article 5.1.c) of the GDPR.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by DIARIO ABC, S.L. against the resolution of this Spanish Agency for Data Protection issued on December 27, 2022, in file RR/00062/2023.

SECOND: TO NOTIFY this resolution to DIARIO ABC, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from

the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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